SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST VIRGINIA

Proceeding: Counterclaim damages evidence.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Damages/Offset Declaration and Ledger

Filed November 24, 2025 as District ECF No. 49-5, an attachment to Asterglen's opposition at District ECF No. 49.

I am Copper Kestrel's finance director and custodian for the interruption-cost ledger maintained after Asterglen disabled the shared staging credential on July 22, 2024. I supervise cost coding, vendor-invoice review, customer-credit approval, and internal project accounting. I reviewed the underlying payroll allocations, vendor invoices, credit approvals, technical time entries, and payment records before making this declaration.

Copper Kestrel claims $120,000 on its counterclaim. The ledger concerns costs allegedly caused by immediate service disablement and the ensuing transition. It does not charge Asterglen for licenses at the twenty-nine proposed additional terminals, and it does not assume that Copper Kestrel prevailed on liability. The amount remains subject to objections concerning causation, reasonableness, mitigation, and allocation.

The four categories are emergency dispatch labor, temporary routing services, customer credits, and technical restoration and validation. The records were created or approved near the events by personnel with responsibility for the underlying transactions. I excluded forecast costs, unsupported estimates, and items already assigned to ordinary operations.

Emergency dispatch labor — $36,000

The emergency-labor category reflects additional dispatch and supervision hours incurred from July 22 through the controlled transition. After the shared credential was disabled, personnel manually coordinated routing updates that ordinarily passed through automated or integrated channels. Supervisors reassigned staff and approved specific overtime codes for this work.

The ledger identifies employee role, work date, additional hours, approved rate, operational explanation, and approving manager. It excludes base compensation for scheduled hours and removes entries lacking a connection to the service interruption. The resulting incremental amount is $36,000.

Asterglen disputes whether every hour was necessary and whether Copper Kestrel's earlier configuration choices contributed to the workload. The source entries permit those questions to be tested by date and task. The amount does not depend on treating the July 8 oral-permission account as undisputed. It records activity after July 22 under Copper Kestrel's causation theory.

Some labor supported migration back to the twelve terminals identified in the April 15 license. Other labor supported customer continuity while the technical team mapped open sessions. No entry pays for adding a terminal after July 22. Copper Kestrel will credit any labor cost determined to be ordinary, duplicative, or unrelated to Asterglen's disablement.

Temporary routing services — $28,000

Copper Kestrel obtained temporary routing capacity and manual message-relay assistance while its teams stabilized access through the original twelve terminals. Vendor invoices and service confirmations total $28,000 after removal of taxes and unrelated recurring charges. The service period begins after the July 22 disablement and ends after continuity validation.

Each invoice was matched to an approved procurement request and payment record. The ledger identifies the vendor reference, service interval, amount, and internal cost center. No invoice concerns Meridian's June 14 implementation work before termination. Meridian's post-July 22 mitigation invoices are addressed only to the extent they supplied restoration or validation services in this category or the technical category, never both.

Asterglen contends that Copper Kestrel could have avoided some temporary costs by remaining within the twelve-terminal schedule. Copper Kestrel responds that an orderly three-business-day reduction after notice would have cost less than an immediate credential disablement. The ledger does not decide that dispute. It supplies the transactions underlying the asserted loss.

If a vendor issues a rebate, credit, or refund connected to these invoices, Copper Kestrel will reduce the claim. As of the declaration date, no such recovery remained uncredited in the $28,000 subtotal.

Customer credits — $24,000

The customer-credit category contains credits approved for delayed or incomplete dispatch-status updates during the transition. The subtotal is $24,000. Each row identifies the customer account by internal code, the affected shipment interval, the reason stated by customer service, the approved credit, and the approval date.

I excluded ordinary promotional credits, pricing disputes, and service issues predating July 22. I also excluded claimed reputational harm and lost future business because those figures were not recorded as completed transactions. The remaining credits were posted against customer balances and can be traced to the general ledger.

Asterglen disputes that the disablement caused every delayed update and notes that Copper Kestrel and Meridian had maintained the forty-one-identifier configuration despite the unsigned change order. Copper Kestrel maintains that immediate loss of the shared credential changed the routing workflow and produced the documented delays. That dispute is not resolved by accounting classification alone.

The credit rows overlap factually with the technical reduction evidence because both concern how service continued from July 22 through July 25. They do not establish whether the July 8 call authorized production activity. They show the economic consequences Copper Kestrel attributes to the manner and timing of termination.

Technical restoration and validation — $32,000

The final category totals $32,000 for technical restoration, session mapping, data-integrity review, routing validation, and access testing. It includes approved Meridian invoices for work through July 25 and internal technical time assigned specifically to the transition. Entries appearing in the emergency-labor or temporary-service categories were excluded here.

The task descriptions correspond to the technical sequence described by the engineering witnesses: freeze new provisioning, inventory open sessions, preserve completed shipment data, move required activity to the twelve licensed terminals, disable additional identifiers, and validate continuity. The records do not show the creation of a new terminal after July 22.

Asterglen challenges whether these costs were caused by its conduct or by Copper Kestrel's decision to provision forty-one identifiers. Copper Kestrel contends the costs were increased by immediate disablement without written notice or a fifteen-calendar-day cure opportunity. The ledger preserves the task-level information needed to evaluate both contentions.

The $32,000 subtotal does not include the later litigation test performed for the cure-feasibility declaration. It concerns operational work during and immediately after the July events. No projected legal fee, expert fee, or motion expense appears in the counterclaim ledger.

Total, possible offset, and declaration

The four supported subtotals are $36,000 in emergency dispatch labor, $28,000 in temporary routing services, $24,000 in customer credits, and $32,000 in technical restoration and validation. Their sum is $120,000. I verified the arithmetic and checked the categories for duplicate transaction identifiers.

Asterglen seeks $480,000 on Count I. Copper Kestrel's $120,000 counterclaim remains pending. If both parties were found liable and obtained monetary awards, the amounts could require an offset or other coordinated accounting. I offer no legal opinion about entitlement, finality, or the method a court would use. I state only that the claims arise from overlapping July events and that the counterclaim amount has identifiable supporting transactions.

I understand this declaration and ledger were filed November 24, 2025 as District ECF No. 49-5, attached to Asterglen's District ECF No. 49 opposition. Asterglen cites the document to show overlap and a potential offset; that filing use does not mean Asterglen admits causation or amount.

I declare under penalty of perjury that the ledger was compiled from records maintained in Copper Kestrel's ordinary financial processes, the stated exclusions were applied, and the factual statements above are true and correct to the best of my knowledge after reasonable inquiry. Executed on November 20, 2025.